
PERSEUS

Scheme Agreement

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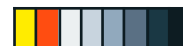
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0. Agreement

This **Data Sharing Scheme** is the **Perseus Scheme**.

This Agreement is entered into by You and the eligible entities that are admitted as members (collectively referred to as “Members”).

Prerequisite Contracts

Adoption of this Scheme requires that the following prior Agreements are in place.

- IB1 Membership V2023-01-01 <https://ib1.org/terms/membership-tcs-2023-01-01>
- IB1 Core Trust Framework V2024-09-01 <https://ib1.org/terms/ctf>
 - Can be signed online at <https://ib1.org/tf/ctf>

Interpretation Clauses: This Agreement shall be interpreted in accordance with common UK legal principles, and any ambiguity shall be resolved in a manner consistent with the goals and intent of the Scheme.

1. Definitions and Interpretations

Standard definitions are included herein, and maintained at:

<https://ib1.org/terms/definitions>

Scheme Agreement	means this agreement
Data or Scheme Data	refers to any information exchanged under the Scheme, including personal, anonymized, and aggregated data
Scheme Member	refers to any organisation or entity that has been admitted into the Scheme and agrees to adhere to its rules
Data Controller	has the same definition as “controller” as defined under applicable data protection laws.
Data Processor	has the same definition as “processor” under the UK GDPR.
Permitted Purposes	defines the specific uses of data authorised under this Scheme, which may include regulatory compliance, analysis, or service improvement.
Trust Framework	means the policies, standards, and protocols governing the operation of any Scheme within a trust framework, ensuring data integrity, security, and compliance.
Trust Framework Guidance	means any guidance given as part of the Trust Framework.
Domestic Law	means the law of the United Kingdom or a part of the United Kingdom.
GDPR Right	means any right given to a data subject by the UK GDPR exercisable directly against a controller.

UK GDPR	as defined in section 3 of the Data Protection Act 1998 The terms “controller”, “data subject”, “personal data”, “processor”, and “processing” have the meanings given to them by the UK GDPR (or, where applicable, such wider interpretation as may have been provided for in the Data Protection Act 1998).
Resource Consumer	including, but not limited to, Energy Consumer as defined in The Smart Energy Code (SEC)
Consumption Data	including, but not limited to, energy consumption data in kWh
Consumption Data Provider (CDP) or Energy Data Provider (EDP)	including, but not limited to, an energy data supplier
Carbon Accounting Provider (CAP)	limited to carbon accounting solutions providers that provide software-as-a-service solutions
Derivative Data	Greenhouse gas (GHG) emissions data created by the CAP as defined by the Partnership for Carbon Accounting Financials (PCAF) in kgCO ₂ e
Derivative Data Supplier	CAP that delivers Derivative Data to a Financial Service Provider and/or the SME.
Standards Body	an industry body that provides carbon or greenhouse gas reporting standards
Financial Services Provider (FSP)	UK Public Finance Institution, UK Bank or UK Lender as defined as an organisation licensed by the UK FCA to enter into a regulated credit agreement as lender in accordance with The Financial Services and Markets Act 2000 (Regulated Activities) Order 2001, Section 60B(1)
Scheme Data Flow	Consumption Data from Consumption Data Provider to the Carbon Accounting Provider, and Derivative Data from a Derivative Data Supplier to a Financial Services Provider
Scheme End Beneficiary	a UK SME as defined below
Scheme Data Subject	a Data Subject as defined under GDPR or an SME under an equivalent definition and/or regulation or code
Registry	the Core Trust Framework Registry, located at https://registry.core.trust.ib1.org
Scheme Policies	policies applicable to this specific Scheme located in the Registry and available via unique URLs
Data Right Notice	any communication received by a Member that appears to be the exercise or purported exercise of a GDPR Right.
UK SME	any legal person that has fewer than 250 employees and a turnover of less than €50 million or a balance sheet total less than €43 million as determined or amended by the UK Government from time to time.

2. Purpose, parties, interpretations

2.1. Purpose of this Scheme

The purpose of this Data Sharing Scheme is to facilitate the secure, efficient, and standardised exchange of data among Members, including but not limited to, businesses, regulatory bodies, and other approved organisations. The Scheme is designed to support transparency, compliance, and innovation within the relevant industry or sector.

These Terms serve as a common agreement for Members of this Data Sharing Scheme, ensuring a common understanding of expectations, standards, and compliance requirements.

This Scheme aims to:

- Enable secure and authorised data sharing among trusted Members.
- Enhance the quality, consistency, and reliability of shared data.
- Ensure Members comply with relevant data protection, privacy, and security regulations (e.g., GDPR).
- Promote transparency and accountability within the data-sharing ecosystem.
- Facilitate the use of shared data for specific purposes, such as sustainability initiatives, regulatory compliance, or financial services.

Industry Relevance, Background and Rationale

The scheme serves sectors where data sharing is critical to achieving industry-wide objectives, such as environmental compliance, financial transparency, or digital innovation.

Industry Challenges: Many industries face challenges around data interoperability, trust, security, and compliance, which can inhibit innovation and create inefficiencies. This Scheme is designed to address these challenges by providing a trusted environment for data sharing.

Need for a Trust Framework: The Scheme operates within a structured Trust Framework, ensuring that all Members adhere to a common set of policies, standards, and practices, which build trust, minimise risks, and promote reliable data sharing.

Legal and Regulatory Context: The Scheme is established in alignment with relevant laws and regulations, including data protection and privacy laws (e.g., GDPR), as well as industry-specific standards. By joining the Scheme, Members agree to comply with these requirements and ensure responsible data usage.

2.2. Parties to the Agreement

Members may include:

- Businesses: organisations that contribute data, benefit from data access, or both.
- Service Providers: authorised third parties that facilitate data storage, processing, or analytics.

Related parties may include, but are not limited to:

- Governance parties: approved parties that contribute to and participate in governance of the Scheme
- Standards bodies: parties that contribute to the definition of standards

For the avoidance of doubt, end users (UK SMEs) are not Parties to the Agreement, their rights are enabled and protected by it.

3. Governance, Membership, Roles

3.1. Governance

- 3.1.1. Governance of the Scheme is overseen by a Steering Group, Delivery Oversight Committee, and codesigned via Advisory and Working Groups.
- 3.1.2. Members of these groups are defined in Appendix A.
- 3.1.3. Standard operating procedures for these groups is outlined at <https://ib1.org/sops/governance-schemes>

3.2. Common requirements & obligations of Scheme members

- 3.2.1. Perseus members shall comply with all Scheme Policies specified in the Registry at the following URL: <https://registry.core.trust.ib1.org/scheme/perseus#Policy>. Scheme Policies are not immutable and are subject to change via the Scheme governance process (see <https://ib1.org/sops/governance-schemes>) by which existing Scheme Policies may be deleted and new ones added.
- 3.2.2. Members shall adhere to industry best practices in carbon accounting, ensuring accurate data processing and reporting, and commitment to sustainable finance principles
- 3.2.3. Members shall adhere to industry best practices in data security
- 3.2.4. Members shall adhere to industry best practices in permissioning and privacy, including compliance with relevant regulations (e.g. GDPR).

3.3. Financial Service Provider

- 3.3.1. Organisations: Bank and Lender FSPs as defined
- 3.3.2. Role(s): Usage of derivative data to assess the sustainability profiles of SMEs for the purpose of green financing and risk assessment in line with ESG criteria.

3.4. Carbon Accounting Providers

- 3.4.1. Organisations: Carbon accounting software providers, sustainability reporting platforms
- 3.4.2. Role(s): facilitate the tracking and reporting of emissions data, helping SMEs and Financial Institutions make informed decisions on carbon reductions and compliance with sustainability goals

3.5. Energy Data Providers

- 3.5.1. Organisations: Energy data providers and/or aggregators
- 3.5.2. Role(s): supply of granular energy consumption data to support accurate emissions calculations by CAPs, enabling SMEs and FIs to track carbon emissions linked to energy usage.

3.6. Third-Party Auditors and Verifiers

- 3.6.1. Organisations: Accredited independent auditors, verification firms, and certification bodies that assess emissions data accuracy.
- 3.6.2. Role(s): provide independent verification of data accuracy, ensuring the reliability of emissions tracking and carbon reduction claims within the Scheme.

3.7. Landlords

- 3.7.1. Many SMEs operate in sublet property where they do not have direct access to the data. Access to, and permissioning of, data may involve commercial property owners, facilities managers, asset managers, building management systems providers and the SME.
- 3.7.2. Responsibility for alignment with and adherence to this Scheme and related permissioning is the responsibility of the EDP.

3.8. Standards Bodies

- 3.8.1. Standards Bodies are referenced by, and may participate in, the Scheme
- 3.8.2. Relevant organisations are listed in the Appendix

4. Data Rights and Licensing

4.1. Form of licence

- 4.1.1. Where any Member supplies Scheme Data to another, it shall license it under an ib1:licence as defined in the Registry.

4.2. Effect of licence expiry

- 4.2.1. On the expiry of any such licence, if the receiving Member shall, if it no longer possesses a licence permitting it to retain the transferred data, destroy all copies of the transferred data in its possession, with the exception of:
 - 4.2.1.1. Any data for the time being present in cyclical backups that will be deleted in the normal course of events.
 - 4.2.1.2. Any data it is required to keep by Domestic Law.

4.3. Fees and payment terms

- 4.3.1. Any charges or other commercial terms for the supply of Scheme Data levied between the Members are solely a matter for the parties involved.

4.4. Exclusivity

- 4.4.1. This Scheme is non-exclusive. Members are free to join other initiatives and approaches as appropriate to them.

4.5. Compliance with licence conditions

- 4.5.1. Any member who obtains Scheme Data shall comply with any conditions imposed by that licence, for example as to the uses of data permitted under the licence or the time for which that data may be retained, unless properly authorised to do otherwise by the licensor. It is noted that multiple parties may have the rights to access and/or provide authorisation to the data for this and related purposes, with such rights covered by separate agreements not linked to this Agreement.

4.6. Data protection

- 4.6.1. Schedule 1 (data protection) has effect.

4.7. Data retention

- 4.7.1. Participants shall adhere to the [Data Retention Policy](#) in force at the time of data collection.

5. Technical Requirements

Members are required to adhere to specific data standards (content, formats, structure), transmission (modes), security (machine and human), and assurability requirements as relevant to their role(s).

These requirements include, but are not limited to:

- Consumption Data
- Derivative Data
- Transmission Requirements
- Assurability Requirements
- Security Measures and Protocols
- Compliance

These requirements are detailed in the Registry which is maintained as an operational implementation resource and may be updated from time to time based on authorised requests via the Scheme's governance process.

6. General Terms

6.1. Scheme Fees and Payment Terms

Fees and Payment Terms are defined in the Prerequisite Contracts for Agreement to this Scheme. No amendments are required for this Scheme.

6.2. Confidentiality

Confidentiality clauses are defined in the Prerequisite Contracts for Agreement to this Scheme.

No amendments are required for this Scheme.

6.3. Intellectual Property Rights ('IPR')

IPR clauses are defined in the Prerequisite Contracts for Agreement to this Scheme.

No amendments are required for this Scheme.

6.4. Monitoring and Reporting

Monitoring and reporting requirements may include but are not limited to:

- Data Usage Reporting Requirements
- Compliance Monitoring and Verification
- Annual or Periodic Review of Member Performance
- Reporting Violations and Non-Compliance

These requirements are detailed in the Registry which is maintained as an operational implementation resource and may be periodically updated based on authorised requests in accordance with the process and timeframes outlined in the Scheme's governance process.

6.5. Dispute Resolution

The Dispute Resolution process for Parties to this Scheme is defined at:

<https://ib1.org/terms/drp/> version: V2024-11-04

No amendments are required for this Scheme. Any SME/end customer dispute resolution should be handled by members' existing processes.

6.6. Termination and Suspension

Termination clauses are defined in the Prerequisite Contracts for Agreement to this Scheme.

No amendments are required for this Scheme.

6.7. Compliance, Obligations, Liability and Indemnification

You agree to commercially reasonable Terms as agreed and may be updated from time-to-time through the Scheme's governance process. These requirements are detailed in the Registry.

6.7.1. Obligations for Accurate Data Provision Between Parties

- a) Each Party shall ensure that all Data supplied under this Agreement is, to the best of its knowledge, accurate, complete, and provided in good faith.
- b) Each Party shall implement and maintain appropriate data quality and validation controls to prevent the transmission of inaccurate or misleading Data.
- c) Upon becoming aware of any error or inaccuracy in the Data, a Party shall promptly notify all affected Parties and shall use reasonable endeavours to correct such error without undue delay.
- d) Failure to comply with this clause shall constitute a material breach of this Agreement.

6.7.2. Limitation of Liability for and Between Parties

- a) Except as otherwise expressly provided in this Agreement, each Party's total aggregate liability to any other Party, whether arising in contract, tort (including negligence), breach of statutory duty, or otherwise, shall not exceed the total amount of fees paid by that Party for participation in the Scheme during the twelve (12) months preceding the event giving rise to the claim.
- b) No Party shall be liable for any failure or delay caused by circumstances beyond its reasonable control, including but not limited to acts of God, regulatory actions, or network failures.
- c) Nothing in this Agreement shall exclude or limit liability for death or personal injury caused by negligence, fraud, or wilful misconduct.

6.7.3. Indemnification Obligations

a) Each Party ("Indemnifying Party") shall indemnify, defend, and hold harmless the other Parties ("Indemnified Parties") from and against any and all claims, losses, damages, liabilities, costs, and expenses (including reasonable legal fees) arising out of or in connection with:

- the Indemnifying Party's breach of this Agreement;
- the Indemnifying Party's misuse of Data contrary to the Scheme Rules or applicable law; or
- any negligent or wilful act or omission by the Indemnifying Party.

b) The Indemnified Parties shall provide the Indemnifying Party with prompt written notice of any such claim and reasonable assistance in its defence.

6.7.4. Exclusion of Indirect or Consequential Damages

a) To the maximum extent permitted by law, no Party shall be liable to any other Party for any indirect, consequential, special, or incidental losses or damages, including but not limited to loss of profits, revenue, data, or goodwill.

b) The exclusions above shall not apply in cases of gross negligence, wilful misconduct, or deliberate breach of confidentiality or data protection obligations.

6.7.5. Liability for Data Breaches

a) Each Party shall implement and maintain appropriate technical and organisational measures to protect Data against unauthorised or unlawful processing, accidental loss, destruction, or damage.

b) Where a Data Breach occurs that is attributable to a Party's failure to comply with its obligations under this Agreement or applicable data protection law, that Party shall bear sole responsibility for any resulting loss, damage, or regulatory penalty.

c) The responsible Party shall notify the affected Parties and, where required, the relevant supervisory authority without undue delay following discovery of a Data Breach.

6.7.6. Liability for Misuse of Data

a) Each Party shall use the Data only for the permitted purposes defined in the Scheme Licences and this Agreement.

b) Any unauthorised use, disclosure, modification, or re-identification of Data shall constitute a material breach of this Agreement.

c) A Party found to have misused Data shall be liable for all direct damages suffered by other Parties as a result of such misuse and may be subject to immediate suspension or termination of its participation in the Scheme.

6.7.7. Compliance with Scheme Rules

- a) Each Party shall at all times comply with the Scheme Rules, Technical Standards, and Governance Procedures as published in the Scheme Registry and as may be amended from time to time.
- b) Each Party shall maintain active Scheme Membership in good standing and shall implement approved APIs, licences, and security protocols consistent with Scheme requirements.
- c) Material or persistent non-compliance with the Scheme Rules may result in suspension, termination, or revocation of the Party's Trust Framework credentials, without prejudice to any other rights or remedies available under this Agreement.

6.7.8. Cooperation with Audits and Investigations

- a) Each Party shall cooperate fully with any audit, inspection, or investigation conducted pursuant to the Scheme's Governance Procedures.
- b) Such cooperation shall include providing timely access to relevant personnel, systems, records, and documentation necessary to verify compliance with this Agreement and the Scheme Rules.
- c) Failure to cooperate with, or any obstruction of, an authorised audit or investigation shall constitute a material breach of this Agreement and may result in corrective measures including suspension or termination of Scheme Membership.

6.8. Amendments and Modifications

This Scheme will be updated from time to time. This process is governed via the Scheme Steering Group, Delivery Oversight Committee and Advisory Group process as described at <https://ib1.org/sops/governance-schemes/>

This includes:

- Processes for updating the Scheme rules and policies
- Notifications of Changes to Members
- Approval of Amendments by the Scheme governance
- Rights to Withdraw Upon Significant Changes

6.9. Representations and Warranties

- 6.9.1. Baseline Representations and Warranties clauses are defined in the Prerequisite Contracts for Agreement to this Scheme.
- 6.9.2. Representations and Warranties required for this Scheme may include:
 - Warranties of Data Accuracy and Quality
 - Compliance with Laws and Regulations
 - Authority to Enter into Agreement
 - Mutual Representations of Good Faith

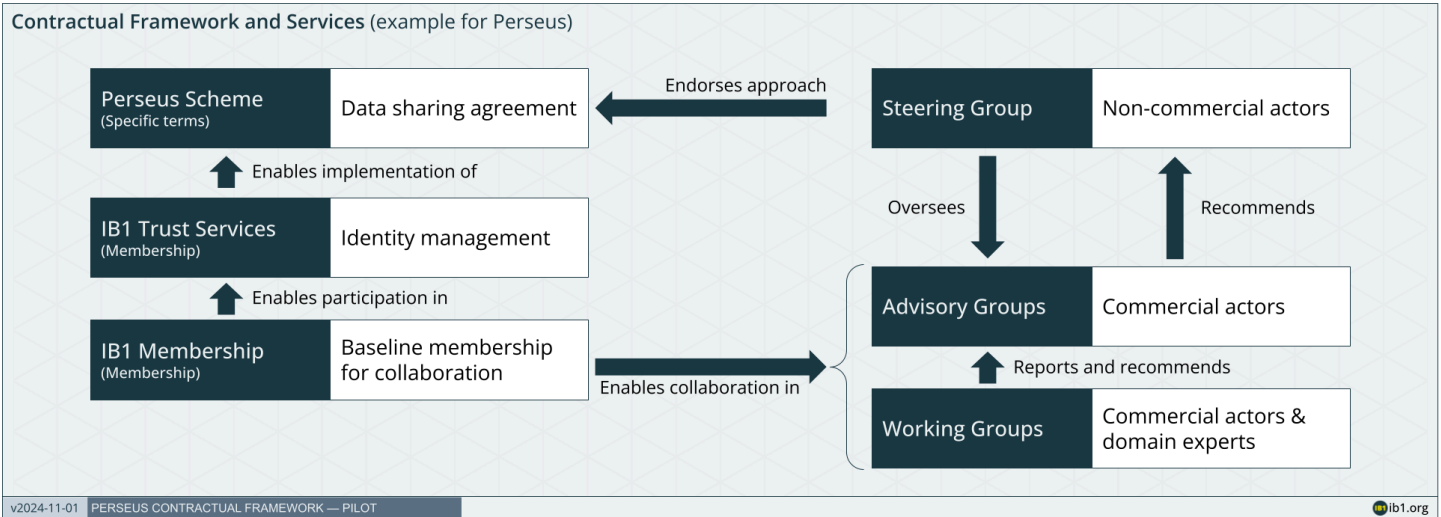
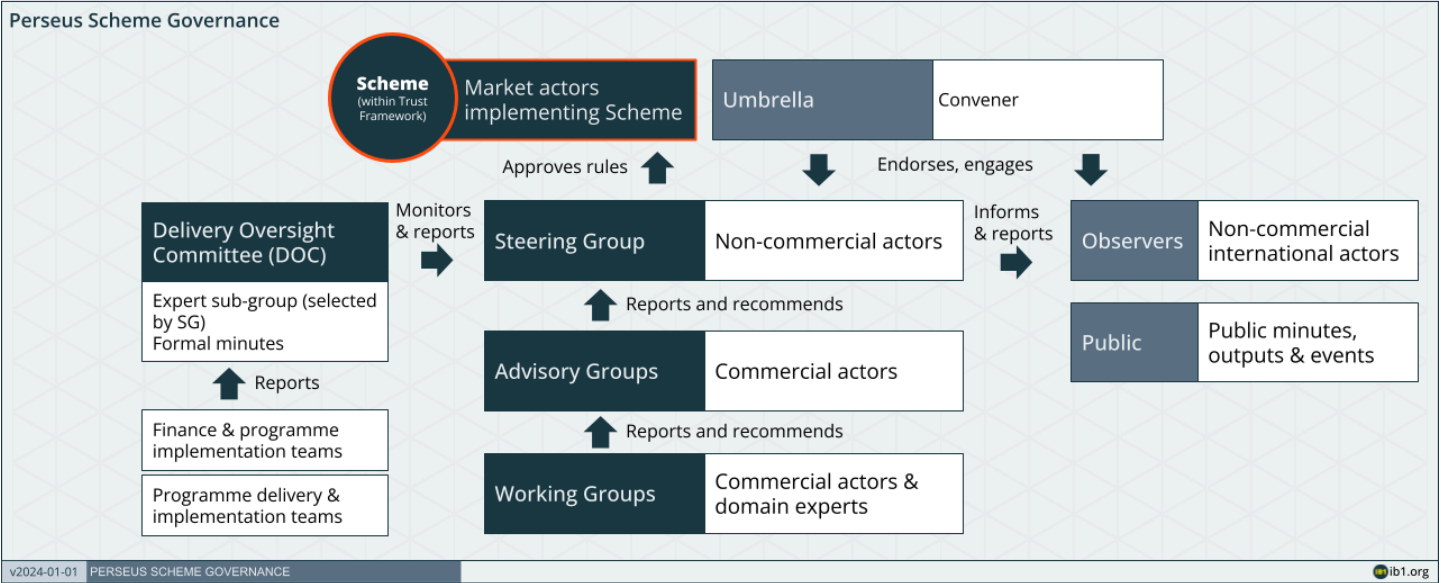
6.9.3. No additional Representations and Warranties are required.

6.10. Execution

6.10.1. Adoption of this Agreement can be made by the Authorised Representative of your organisation using the online process available at <https://ib1.org/tf/ctf> or an appropriate online document signing service.

7. Appendix, Schedules & Exhibits

7.1. Schematics: governance, membership, agreement



7.2. AG1: Methodology, Ecosystem Map, Assurance

Reference reports are available at

<https://ib1.org/perseus/2024-report/>

Document title: Scheme Agreement: Perseus

Document code: IB1-SA-PERSEUS

Version: w2026-03-12

Document title: Product opportunities, User Needs, Ecosystem Map, Future Innovation

Document code: IB1-PERSEUS-AG1-WG1,2,4,5

Version: Draft v2024-12-16

Standards Bodies

- Partnership for Carbon Accounting Financials (PCAF). An industry-led partnership to facilitate transparency and accountability of the financial industry to the Paris Agreement. Ref: <https://carbonaccountingfinancials.com>
- Greenhouse Gas Protocol, "GHG Protocol" is an initiative managed by World Resources Institute ("WRI") and World Business Council for Sustainable Development ("WBCSD"). Ref: <https://ghgprotocol.org>

7.3. AG2: Technical requirements

Reference reports are available at

<https://ib1.org/perseus/2024-report/>

Document title: Perseus Data Standards (Pilot)

Document code: IB1-PERSEUS-DATA-STANDARDS

Version: v2024-12-16

Document title: Perseus Provenance and Assurance (pilot)

Document code: IB1-PERSEUS-TECH-PROVENANCE

Version: v2024-12-16

Schedule 1: Data Protection

This schedule governs the processing by Members of Scheme Data. In the event of any conflict between the provisions of this schedule and any other part of this Scheme Agreement, the provisions of this schedule shall prevail.

Additional Protection to SMEs

In addition to protecting the rights of data subjects protected under GDPR and the UK Data Protection Act 2018, this schedule shall extend the rights and protections regarding the portability of customer and business data to UK SMEs as defined in the 2025 Data Use and Access Act.

General

All Members are Data Controllers.

Each Member shall comply with obligations imposed on it by the UK GDPR.

Where it would not be reasonably practical for one (the Requesting Member) to comply with a duty imposed on it by the UK GDPR without assistance from another Member (the Assisting Member), then the Assisting Member shall provide such assistance to the Requesting Member within a reasonable time of a request to do so.

Notwithstanding any obligation of confidence owed to any other Member, each Member shall be free to communicate the essence of this Schedule to a data subject.

Data rights exercisable by data subjects

If a Member receives a Data Right Notice relating to Scheme Data, then:

- If it believes any of the data to which the notice relates is being processed by another Member, it shall at its discretion, consulting with the Scheme Data Subject where necessary, either refer the Scheme Data Subject to the other Member; or pass on any relevant part of the Data Right Notice to the Other Member which shall treat it as having been given to them.
- If it is unclear to the Member whether any of the data to which the notice relates is being processed by another Member, it shall clarify the question with the giver of the notice.
- Having done so, it shall give an appropriate response to the Data Right Notice, .

But in handling a Data Right Notice, Members shall not communicate any personal data relating to the Scheme Data Subject to one another without the prior consent of the Scheme Data Subject.

Information rights

Each Member shall provide all information it is required (and in such manner as it is required) to do so under Articles 13 and 14 of the UK GDPR, as applicable, taking into account any Trust Framework Guidance. It is up to Members to design and populate their own privacy notices.

Supplementary policies

Members shall comply with any Scheme Policies relating to the operation of this schedule to the extent that they do not contradict the provisions of this schedule.